

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT
RAWALPINDI BENCH RAWALPINDI
JUDICIAL DEPARTMENT

Writ Petition No.3722 of 2021

Muhammad Islam

Versus

***Learned Additional District Judge
and others***

S.No.of order/ Proceeding	Date of Order/ Proceeding	Order with signature of Judge, and that of parties' counsel, where necessary
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19.11.2021 Mr. Razzaq A. Mirza, Advocate.

Through this writ petition, the petitioner has challenged the order dated 23.09.2021 passed by the learned Rent Tribunal, Rawalpindi whereby his application for leave to contest was dismissed and as a result thereof eviction petition filed by respondent No.3 was accepted, as well as the judgment dated 10.11.2021 whereby appeal preferred by him against the aforementioned order was also dismissed by the learned Additional District Judge, Rawalpindi.

2. The petitioner acquired godown Plaza situated at Al-Khidmat Plaza Iqbal Road, Rawalpindi bearing property No.1/154-166-167 on lease from respondent No.3 vide agreement dated 18.02.2020 for a period of one year w.e.f. 01.02.2020 to 31.01.2021 on yearly rent of Rs.10,80,000/- (i.e. Rs.90,000/- per month) which was paid in advance and Rs.3,00,000/- as security.

3. Respondent No.3 filed eviction petition in the court of learned Rent Tribunal, Rawalpindi on the grounds that the petitioner was wilful default in the payment of rent, expiry of lease agreement and personal bonafide need of respondent No.3 wherein leave to contest was filed by the petitioner who denied default while alleging that respondent No.3 had already received excess amount of Rs.11,18,250/- so the rent upto date of 31.07.2022 was already paid. The petitioner

further claimed that status of respondent No.3 as a landlord was questionable inasmuch as he was neither owner of the property nor he was authorized to receive rent in respect of the rented premises.

4. By order dated 23.09.2021, leave to contest was refused and eviction petition was allowed on the ground of expiry period of tenancy as well as the default in the payment of rent due since the petitioner failed to produce any receipt of payment of monthly rent since expiration of lease agreement on 31.01.2021. The appeal preferred by the petitioner was also dismissed after maintaining the above findings of the learned Rent Tribunal.

5. Learned counsel for the petitioner states that the impugned order and judgment passed by the learned courts below are against the law and facts which are liable to be set aside; that the petitioner has been deprived of his right to fair trial embodied in Article 10-A of the Constitution of Islamic Republic of Pakistan, 1973; that according to the second lease agreement inter se the petitioner and respondent No.3, the payment schedule was not on monthly but yearly basis, therefore, the petitioner paid an amount of Rs.10,80,000/- from 01.02.2020 to 31.01.2021 as an advance, whereafter the petitioner was liable to pay 10 percent on yearly increase rent, however, on the request of respondent No.3 the petitioner paid Rs.4,00,000/- and Rs.3,00,000/- as security which was already with respondent, hence the petitioner had already paid Rs.7,00,000/-, which aspect has not been appreciated by the learned courts below.

6. Arguments heard. Record perused.

7. The petitioner was non-suited by the learned courts below on his failure to produce any payment of receipt of rent due. Undeniably, the tenancy agreement dated

18.02.2020 inter se the petitioner and respondent No.3 expired in this case on 31.01.2021 and there was no extension of agreement between the parties thereafter. It is settled law that in absence of any written agreement the tenancy inter se the petitioner and respondent No.3 was to be reckoned on month to month basis and, in the absence of anything to the contrary, the oral tenancy can be considered to have expired in this case. Reliance in this regard is placed on the cases of Muhammad Akram Bhatti versus Additional District Judge, Attock and 3 others (2021 CLC 1405), Asad Ali Khan versus Special Judge Rent and others (PLD 2019 Lahore 363), Muhammad Nayab versus Additional District Judge, Rawalpindi and 2 others (2016 MLD 1095) and Muhammad Tafeeq versus Muhammad Nawaz and 2 others (2015 CLC 1187).

8. The petitioner, who admittedly executed the lease agreement with respondent No.3, has failed to establish bonafide in raising plea regarding status of respondent No.3 as landlord under the Punjab Rented Premises Act, 2009 which defines the landlord in the following terms:-

2. Definitions;- In this Act:--

(d) “Landlord” means the owner of premises and includes a person for the time being entitled or authorized to receive rent in respect of the premises.”

9. The aforementioned definition of landlord includes not only the owner but the one authorized to receive rent of the rented premises. Therefore, any person entitled to claim rent is a landlord. The petitioner, who admittedly obtained rented premises on lease from respondent No.3 and paid him the rent for four years, has no right to question his authority to lease the premises in question. Where conduct of the tenant is found to be inequitable in denying the status of landlord, he

is disentitled to the grant of any equitable relief. Reliance in this regard is placed on the case of Muhammad Shah Alam versus Muhammad Abdul Ghafoor (1979 SCMR 443). Therefore, the contention of learned counsel for the petitioner is clearly misconceived.

10. As regards claim of the petitioner regarding payment of excess amount of Rs.11,18,250/- to be treated as rent paid upto 31.07.2022 is concerned, there is nothing reliable placed on record by the petitioner in support of his such claim. Needless to add here that the relevant law i.e. The Punjab Rented Premises Act, 2009 only recognizes modes of payment specified in Sections 7 and 20 of the said Act and the petitioner has annexed nothing with the petition to establish payment in any of the said modes.

11. Learned counsel for the petitioner has failed to point out any illegality or jurisdictional defect warranting interference by this Court in the impugned order and judgment in exercise of jurisdiction under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973.

12. For the foregoing reasons, this writ petition is ***dismissed in limine*** being devoid of any merits.

(RAHEEL KAMRAN)
JUDGE